

106	Southern California Edison Company vs. California State Board of Equalization 2025-01534286	Demurrer to Answer of 19 County Defendants OFF CALENDAR PER STIPULATION AND NOTICE OF WITHDRAWAL
107	Cyrus vs. FHP Capital Partners, LLC 2025-01465780	1. Motion to Compel Arbitration 2. Case Management Conference Defendant FPH Capital Partners, LLC's motion to compel arbitration is GRANTED. Plaintiff Carl Cyrus is ordered to arbitrate his individual claims. The class claims are dismissed without prejudice. This case is otherwise STAYED pending completion of arbitration. An ADR Review Hearing is scheduled for March 4, 2027 at 9:30AM. The parties must file a Joint Status Report at least 16 court days before the hearing and may request a continuance if arbitration is not yet complete. Existence of Arbitration Agreement The right to arbitration depends upon contract; a petition to compel arbitration is simply a suit in equity seeking specific performance of that contract. Little v. Pullman (2013) 219 Cal.App.4th 558, 565. The petitioner bears the burden of proving the existence of a valid arbitration agreement by the preponderance of the evidence, and a party opposing the petition bears the burden of proving by a preponderance of the evidence any fact necessary to its defense. Id.; Perry v. Thomas (1987) 482 U.S. 483, 492 n.9 (State law applicable to contracts generally governs whether a valid arbitration agreement exists.) While the burden of persuasion is always on the moving party, the burden of production may shift in a three-step process. First, the moving party must present "prima facie evidence of a written agreement to arbitrate the controversy", which is satisfied by attaching a copy of the arbitration agreement purporting to bear the opposing party's signature. Gamboa v. Ne. Cmty. Clinic (2021) 72 Cal.App.5th 158, 164-67. At this step, a movant need not follow the normal procedures of document authentication. Condee v. Longwood Management Corp. (2001) 88 Cal.App.4th 215, 218-219. If the moving party meets its initial burden, and the opposing party disputes the agreement, then the burden shifts to the opposing party to challenge the authenticity of the agreement. Finally, if plaintiff presents evidence that no agreement exists, the burden shifts back to the moving party to present admissible evidence of a valid arbitration agreement between the parties by a preponderance of the evidence. Gamboa, supra, 72 Cal.App.5th at 164-67.